

Land Acquisition Act, 1977

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Land Acquisition Act, 2034

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Amending Acts

1. Administration of Justice Act, 2048 2048.02.16
2. Some Nepal Acts Amendment Act, 2048 2048.09.08
3. Some Nepal Acts Amendment Act, 2055 2055.10.07

Ratification and Publication Date

4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
5. Some Nepal Acts Amendment Act, 2072 2072.11.13
6. Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal 2075.11.19
7. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 6 of the year 2034

An Act Made to Amend and Consolidate the Prevailing Nepal Law relating to Land Acquisition

Preamble: Whereas it is desirable to amend and consolidate the prevailing Nepal law relating to land acquisition,

His Majesty King Birendra Bir Bikram Shah Deva has enacted this Act on the advice and with the consent of the Rashtriya Panchayat. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Land Acquisition Act, 2034".

(2) This Act shall extend throughout Nepal.

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Land" means any land which is in the right or possession of anyone and includes walls, houses, trees permanently situated thereon, and the word also denotes any object permanently attached to such land.

(b) "Public Work" means a work carried out for the benefit, advantage or use of the general public or a work carried out on behalf of the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.Government of Nepal or a Provincial Government, and the word also denotes the following works:-

(1) A project approved by the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.Government of Nepal or a Provincial Government,

(2) A project to be operated by a Amended by Some Nepal Acts Amendment Act, 2072.Local Level.

(c) "Local Authority" means an official appointed by the Government of Nepal. If no such official is appointed, the Chief District Officer shall be understood.

(d) "Interested Person" means a person entitled to compensation or damages to be paid for land acquired under this Act.

(e) "Institution" means a company, development committee, or corporation established or formed under prevailing law. Added by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.(e1) "Local Level" means a Rural Municipality or a Municipality. 3.

Power of Government of Nepal to Acquire Land for Public Work: If the Government of Nepal deems it necessary to acquire any land for any public work, the Government of Nepal may acquire any amount of land in any place, paying compensation as per this Act. Added by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.3A. Land to be Provided for Province or Local Level: If land is required for a project to be operated by a Province or Local Level, and the concerned Province or Local Level requests the Government of Nepal to acquire any land, undertaking to bear the compensation and all other expenses as per this Act, the Government of Nepal may decide to acquire and provide such land to the Province or Local Level. 4. Land may be Acquired for an Institution: (1) If any Institution requests the Government of Nepal to acquire any land for the following works, undertaking to bear the compensation and all other expenses as per this Act, the Government of Nepal may decide to acquire and provide land to such Institution:- (a) To build houses for the employees, laborers or workers of the Institution, or to make other arrangements for their comfort, or any work for the benefit of the general public, (b) To operate a project related to an Institution fully owned by the Government of Nepal, or to construct warehouses for storing goods related to the business of such Institution or any goods produced by such Institution. Added by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.(1a) If an institution fully owned by a Provincial Government requests the Provincial Government to acquire any land for operating a project related to such institution, or for constructing warehouses for storing goods related to the business of such institution or any goods produced by such institution, undertaking to bear the compensation and all other expenses as per this Act, the Provincial Government may request the Government of Nepal to acquire and provide such land.

Upon receiving such request, the Government of Nepal may decide to acquire and provide land to such institution.

(2) Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.The Institution requesting the acquisition of land pursuant to sub-section (1) or (1a) shall not proceed with the acquisition proceedings under this Act unless it executes a deed of undertaking for the following matters:-

(a) To pay the Government of Nepal the expenses incurred or to be incurred for the acquisition of land,

(b) If houses for laborers or artisans are to be built, or any work for their comfort is to be done, specifying by when and in what manner it shall be completed and for how long it shall be maintained,

(c) If it is for any other construction work, specifying by when it shall be completed and how it may be used. Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.(3) Notwithstanding anything contained in sub-section (1) or (1a), if such Institution requires agricultural land for

operating its project, the Government of Nepal shall not acquire land under this Act for agriculture other than for experimental cultivation for research purposes. 5. Decision to Acquire Land and Officer to Conduct Preliminary Proceedings: Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.(1) After the Government of Nepal decides to acquire land for the purpose of Section 3, 3A or 4, the officer of the office for which the land is being acquired, who is at least of the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.gazetted third class or officer level employee, or if there is no gazetted or officer level employee, the head of the office, may conduct preliminary proceedings for the project.

(2) Notwithstanding anything contained in sub-section (1), when acquiring land for an Institution, if the concerned Institution requests that its own employee be nominated to conduct the preliminary proceedings under sub-section (1), the Amended by Some Nepal Acts Amendment Act, 2082.concerned Ministry may issue an order allowing any employee of at least officer level designated by the Institution to conduct such preliminary proceedings. 6.

Preliminary Proceedings Relating to Land Acquisition: (1) The Officer conducting the preliminary proceedings pursuant to Section 5 shall, for the information of interested persons, paste one copy each of the notice at the following offices or places:- (a) A place with high public movement in the vicinity of the concerned land, (b) The office of the concerned Amended by Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality, (c) If it is necessary to acquire a house and any compound occupied by it, at the door of such house or the wall of the compound. (2) Three days after the notice is issued under sub-section (1), the Officer conducting the proceedings may, taking such number of employees or workers as he deems necessary, enter the concerned land or house compound to carry out any of the following works:- (a) To survey or take measurements of such land, (b) To collect samples of soil, stone, etc., to dig pits or conduct boring to ascertain whether the land is suitable for acquisition, (c) To demarcate the amount of land deemed suitable for acquisition by erecting boundaries, pillars, or marking in any other manner, (d) To install or erect any equipment necessary for any work related to clauses (a) or (b). (3) While carrying out any work under clauses (a) to (d) of sub-section (2), if any crop planted on such land or trees need to be cut or uprooted, or any fence or wall needs to be removed or demolished, any person may do so upon receiving an order from the Officer conducting the preliminary proceedings, and such work shall, as far as possible, be done in the presence of the interested person. 7. Compensation to be Paid for Loss: (1) Compensation shall be paid for the loss caused by cutting or demolishing crops, trees, walls, etc., under Section 6, and for any loss caused by extracting soil, stone, digging pits, or boring. (2) The amount of compensation under sub-section (1) shall be determined by the Officer conducting the preliminary proceedings and paid to the interested person. (3) A person dissatisfied with the compensation determined under sub-section (2) may file a complaint with the Chief District Officer within fifteen days from the date of receiving knowledge of such determination, and the decision of the Chief District Officer in such matter shall be final. 8.

Report on Conclusion of Preliminary Proceedings to be Submitted: (1) Within fifteen days from the date of conducting preliminary proceedings, the Officer conducting such proceedings shall complete the proceedings, ascertain the land deemed suitable for acquisition, and submit a report with other necessary details thereof to the Local Authority as soon as possible. (2) While submitting the report under sub-section (1), the amount of compensation determined under sub-section (2) of Section 7 and full details of the loss shall also be mentioned. 9. Notice of Land Acquisition: (1) After receiving the report on preliminary proceedings under Section 8, the Local Authority shall issue a notice stating the following matters regarding the land to be acquired:- (a) For which work the land is being acquired, (b) Whether only the land is being

acquired or the house, wall, etc., on it are also being acquired, (c) The name of the Amended by Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality where the land is located, and the ward number, (d) If the land has been surveyed, the plot number, (e) If the land has not been surveyed, necessary details helpful for identifying the land and its four boundaries, (f) The area or soil capacity of the land, (g) Other necessary details. (2) One copy each of the notice under sub-section (1) shall be pasted at the following offices or places:- (a) The local office of the project for which the land is being acquired, (b) The District Administration Office, (c) The office of the concerned Amended by Some Nepal Acts Amendment Act, 2072.Rural Municipality or Municipality, (d) The Land Administration Office or Mal Adda, (e) A place with high public movement in the vicinity of the concerned land, (f) Any other place deemed necessary by the Local Authority. (3) While publishing the notice under sub-section (1), if the Local Authority is satisfied that any interested person may not receive knowledge of it and deems it appropriate and possible to send personal notice to such interested person, it may also give personal notice to such interested person, and while giving such notice, if the compensation has already been determined, it shall also mention within how many days and at which office the person must appear to receive the amount of compensation. (4) After the notice is pasted under sub-section (1), the concerned Land Administration Office or Mal Adda shall freeze the registration of any deed transferring rights over such land. Upon receiving a written order from the Local Authority to the Land Administration Office or Mal Adda to unfreeze the registration, the registration shall be unfrozen. 10.

Other Matters to be Stated in the Notice of Land Acquisition: The notice to be issued under sub-section (1) of Section 9 shall also state the following matters for the information of interested persons:- (a) A period of at least fifteen days for interested persons to submit applications claiming compensation along with evidence of their title or possession, (b) If the interested person is allowed to cut and remove crops or trees planted on such land, or demolish and remove houses, walls, etc., on it, the period for removing such crops, trees, houses, walls, etc. 11. Landowner may File Complaint: (1) Within seven days excluding the time for distance from the date of pasting the notice under Section 9, if there is any reason why the land should not be acquired, the concerned landowner may file a complaint stating the reason thereof to the Amended by Administration of Justice Act, 2048.Government of Nepal, Ministry of Home Affairs, through the office of the Local Authority. If a tenant has built a pukka house with the consent of the landowner, such tenant may also file a complaint under this sub-section regarding such house and the land occupied by that house. (2) Before deciding on a complaint under sub-section (1), the Amended by Administration of Justice Act, 2048.Government of Nepal, Ministry of Home Affairs shall obtain the opinion of the Officer conducting the preliminary proceedings and, if deemed necessary, of the Local Authority as well, and then decide. (3) For deciding on a complaint filed under sub-section (1), if it is necessary to hear witnesses or procure experts' opinions or require the submission of any documents, the Amended by Administration of Justice Act, 2048.Government of Nepal, Ministry of Home Affairs hearing the complaint under this section shall have the same powers as a District Court. (4) The decision on a complaint under sub-section (2) shall ordinarily be made within fifteen days of receiving such complaint. 12. Power to Take Possession of Land: (1) After the notice under sub-section (1) of Section 9 is issued, if a complaint under sub-section (1) of Section 11 has been filed, after the complaint is settled, and if no complaint is filed, after the period for filing a complaint has expired, the Local Authority may, at any time, take possession of the concerned land and deliver it to the office or institution for which the land was acquired, and thereafter the land may be used for the relevant work.

After taking possession of the land, the Local Authority shall inform the Government of Nepal of this fact.

(2) Notwithstanding anything contained in sub-section (1), if a house is also acquired while acquiring any land, and if the house owner himself resided in that house, the house shall not be taken into possession until fifty percent of the determined compensation amount is paid, if the compensation amount has been determined, or until an advance of a reasonable amount necessary for shifting his residence elsewhere is paid to him, if the compensation amount has not been determined yet. 13. Type of Compensation and Officer to Determine it: (1) Compensation for land acquired under this Act shall be paid in cash.

(2) For determining the amount of compensation under sub-section (1), there shall be a committee consisting of the following office holders:-

(a) Chief District Officer,

(b) Land Administrator or Head of the Mal Adda,

(c) If land is acquired for a project, the Project Chief, and if land is acquired for other works, an Officer designated by the Amended by Administration of Justice Act, 2048. Chief District Officer,

Amended by Some Nepal Acts Amendment Act, 2072. (d) Representative of the concerned Rural Municipality or Municipality.

(3) Notwithstanding anything contained in sub-section (1), while determining compensation, separate rates of compensation may be fixed for a person whose entire land falls within the acquisition and for a person whose only part of the land falls within the acquisition. 14. Land may be Given in Exchange: When acquiring land under this Act, if a person whose entire land falls within the acquired area wishes to receive land instead of compensation, and if any fallow land, land owned by the Government of Nepal, or land which the Government of Nepal has the authority to sell or distribute under prevailing law is available, the Government of Nepal may give such land in exchange.

*15. Compensation for Trust (Guthi) Land: When acquiring Guthi land under this Act, compensation for such land shall be as specified in the Guthi Corporation Act, 2033. 16.

Matters to be Considered while Determining Compensation: (1) Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal. While determining compensation for land acquired for the Government of Nepal, a Provincial Government, a Local Level, or an institution fully owned by the Government of Nepal or a Provincial Government, the Compensation Determination Committee shall take into account the following matters:- (a) Guidelines issued by the Government of Nepal from time to time regarding compensation determination, and (b) The loss suffered by the interested person due to having to relocate his residence or place of business elsewhere because of the acquisition of land. (2) Amended by Some Nepal Acts Amendment Act, 2072. While determining compensation for land acquired for a Local Level and an institution other than an institution fully owned by the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal. Government of Nepal or a Provincial Government, the Compensation Determination Committee shall take into account the following matters:- (a) The prevailing market value of the land at the time of publishing the notice for land acquisition under Section 9, (b) The value of crops on the land, and if the land is acquired together with houses, walls, sheds, etc., their value, (c) The loss suffered by the interested person due to having to relocate his residence or place of business elsewhere because of the acquisition of land. 17. Compensation Determined for Land Exceeding Ceiling Limit: Notwithstanding anything contained in Section 16, if the land acquired under this Act for the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal. Government of Nepal, a Provincial Government, a Local Level, or an institution fully owned by the Government of Nepal or

a Provincial Government exceeds the ceiling limit under the Lands Act, 2021, the compensation for such land shall not exceed the amount of compensation payable under the Lands Act, 2021. 18.

List of Persons Receiving Compensation and Complaint Thereon: (1) The Local Authority shall prepare a list of persons determined to receive compensation from the applications received within the period specified in the notice under Section 9, and paste a notice thereof for the information of interested persons. (2) A person dissatisfied with the list pasted under sub-section (1) may file a complaint with the Amended by Administration of Justice Act, 2048.Government of Nepal, Ministry of Home Affairs, within fifteen days from the date of issuing such notice. (3) If the complaint filed under sub-section (2) relates to matters other than claims of ownership or rights between parties, the Amended by Administration of Justice Act, 2048.Government of Nepal, Ministry of Home Affairs shall ordinarily settle it within fifteen days. Provided that, if such complaint relates to ownership or rights between parties, the Ministry shall take no action on it, but shall inform the concerned person that the compensation under this Act will be given to the person whose title is established by the final decision of the court, stating the name of the office where the compensation amount is deposited. (4) A person whose title is established by a final decision of the court in proceedings concerning ownership or rights between parties shall receive the amount deposited under sub-section (3) within two years of such final decision. After the expiry of that period, such person shall not be entitled to receive the deposited compensation amount, and the amount shall be credited to the Consolidated Fund. 19.

Notice after Determination of Compensation: After the Compensation Determination Committee determines the compensation, the concerned Chief District Officer shall give notice thereof to the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.Government of Nepal or the Provincial Government. 20.

Compensation Payable to Tenant: When acquiring land under this Act, if the land is under tenancy, the tenant shall receive Amended by Some Nepal Acts Amendment Act, 2075.fifty percent of the compensation amount payable for such land. Provided that, if a house built by the tenant with the consent of the landowner is also acquired, the tenant shall receive the full compensation for that house. 21.

Government Dues may be Deducted from Compensation: While distributing compensation for land acquired under this Act, if any land revenue, tax, or other government dues are outstanding to be recovered from the interested person, such outstanding amount may be deducted from the compensation. 22.

Ownership of Land to Vest: After possession of the land is taken under Section 12, ownership of such land shall vest in the Government of Nepal if acquired for the Government of Nepal, and in the relevant Institution if acquired for an Institution. 23.

Transfer of Land Title and Deletion of Revenue Records: (1) Within fifteen days of taking possession of the land, the Local Authority shall write to the office maintaining the registration records of such land to delete the revenue records and transfer the title in the name of the Government of Nepal if the land was acquired for the Government of Nepal, or to transfer the title and register it in the name of the relevant Institution if acquired for an Institution, and such office shall promptly complete the said work and inform the Local Authority and the former landowner thereof. (2) Regardless of the date on which the work of deleting records or transferring title under sub-section (1) is completed, the records shall be deemed to have been deleted or the title transferred from the date of vesting of ownership of such land. (3) If, before the commencement of this Act, the records of land acquired under the then prevailing law were not deleted, after the commencement of this Act, the records of such land shall be deemed to have been automatically deleted. 24.

Not to Affect Situation Prior to Vesting of Ownership: (1) If any amount on account of land revenue or tax due on such land from the former landowner remains to be recovered up to the day prior to the vesting of ownership of any land in the name of the Government of Nepal or an Institution under this Act, nothing in this section shall be deemed to bar the institution of proceedings to recover such outstanding amount even after the vesting of ownership of the land. (2) If land under tenancy is acquired, nothing in this

Act shall be deemed to bar the former landowner from instituting proceedings to recover arrears of rent from the erstwhile tenant for the period prior to the acquisition of the land. 25.

Special Power to Acquire Land in Special Circumstances: (1) If, due to a sudden change in the course of a river, a calamity, or any other extraordinary situation, the Government of Nepal deems it necessary to immediately acquire any land for maintaining the operation of transportation or communication facilities, preventing large-scale loss of life or property, protecting other public property, or for any other reason, notwithstanding anything elsewhere contained in this Act, the Government of Nepal may decide on the matter and order the Local Authority to take proceedings for acquiring such land. (2) For the work under sub-section (1), the Local Authority shall issue a notice for the information of interested persons stating as many of the matters mentioned in sub-section (1) of Section 9 as are available, and such notice may be issued in such manner as the Local Authority deems appropriate to ensure that interested persons receive information promptly. (3) After the notice under sub-section (2) is pasted, the Local Authority may take possession of the land at any time, and from the date of such possession, ownership of such land shall vest in the Government of Nepal. (4) When acquiring land under this section, if crops, trees, houses, walls, etc., built on such land are also acquired, the interested person shall receive compensation for them. (5) The compensation for land acquired under this section shall be determined by the Compensation Determination Committee under Section 13. (6) Except in case of dissatisfaction with the amount of compensation or damages for land acquired under this section, no complaint shall lie on the matter that the land should not be acquired. (7) A person dissatisfied with the compensation or damages may file a complaint with the Amended by Administration of Justice Act, 2048.Government of Nepal, Ministry of Home Affairs within fifteen days from the date of issuing the notice of determination of compensation or damages, and the decision of the Amended by Administration of Justice Act, 2048.Government of Nepal, Ministry of Home Affairs shall be final. (8) Regarding the deletion of records and valuation of land acquired under this section, the Local Authority shall follow the procedure under Section 23, and the provisions of Section 24 shall also apply to such land. 26. **Procedure Deemed Fulfilled with Landowner's Consent:** If the Government of Nepal has used any land for a public work, even if such land was not acquired following the procedure of this Act, if the concerned landowner has given consent, the compensation or damages for such land may be determined under this Act. After such determination of compensation or damages, the land shall be deemed to have been acquired under this Act. 27.

Land may be Acquired through Negotiation: Notwithstanding anything elsewhere contained in this Act, the Government of Nepal may acquire any land for a public work through negotiation with the concerned landowner, and while acquiring land through such negotiation, it shall not be necessary to follow the other procedures mentioned in this Act. 28. **Land may be Acquired for Diplomatic Missions and International Organizations:** (1) Land may be acquired under this Act for diplomatic missions, including consulates, and international organizations. (2) While determining compensation for land acquired under sub-section (1), it shall be determined according to sub-section (2) of Section 16. 29. **When Acquiring Land Together with House, etc.:** When acquiring land under this Act, if the interested person submits an application requesting that the crops, trees, walls, houses, etc., situated on such land be taken entirely, proceedings shall be conducted to take all of them. 30. **Government of Nepal may Decide Not to Acquire Land:** (1) If proceedings have been initiated to acquire land under this Act, the Government of Nepal may decide at any stage not to acquire the land, and in such case, the Local Authority shall paste a notice under sub-section (2) of Section 9 for the information of interested persons. (2) Even if the Government of Nepal halts the proceedings for not taking the land, if compensation for the loss already caused during the preliminary proceedings under Section 6 has not been paid by the Officer conducting the preliminary proceedings, the Local Authority shall

determine and pay compensation under Section 7. 31. No Tenancy Right Created by Giving Land for Cultivation: Until the land acquired under this Act is used for the purpose for which it was acquired, the Government of Nepal or the Institution may give it to someone else to cultivate under a kabuliyat* (contract). The person cultivating the land shall not acquire any tenancy right under the prevailing law by virtue of such cultivation. 32. House Built or Crop Planted without Approval to be Forfeited: (1) After ownership of land acquired under this Act vests in the Government of Nepal or an Institution, no person shall build any kind of house, shed, wall, etc., or cultivate such land without obtaining written approval from the Government of Nepal or the Institution. (2) If any person builds any house, shed, wall, etc., or cultivates the land in contravention of sub-section (1), the Government of Nepal or the Institution may forfeit such house, shed, wall, etc., or the planted crop, without paying any compensation thereof. 33.

Land Taken for One Work may be Used for Other Work: Only the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal. Government of Nepal, a Provincial Government, a Local Level, or an institution fully owned by the Government of Nepal or a Provincial Government may, if the land acquired under this Act is not required for the work for which it was acquired, or if there is surplus land after use in such work, use such unrequired or surplus land for any other public work, in the case of the Government of Nepal, Provincial Government or Local Level; and in the case of such institution, for any of the works specified in sub-section (1) of Section 4. 34. Unnecessary Land to be Returned to Former Landowner: (1) If the land acquired under this Act is not required for the work for which it was acquired, or surplus land remains after use, and it is not used for other work under Section 33 by the Amended by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal. Government of Nepal, a Provincial Government, a Local Level, or an institution fully owned by the Government of Nepal or a Provincial Government, such unrequired or surplus land shall be returned to the former landowner. (2) If, for an institution other than the Government of Nepal or an institution fully owned by a Provincial Government, the land acquired under this Act is not used for the work in accordance with the deed executed under sub-section (2) of Section 4, such land shall be returned to the former landowner. (3) Notwithstanding anything contained in sub-sections (1) and (2), land shall not be returned under this section until the former landowner repays the amount of compensation proportional to the land to be returned out of the compensation distributed under this Act. (4) The Local Authority shall handle the work of taking back the compensation and additional amount from the former landowner and returning the land under this section. (5) After returning the land to the former landowner, the Local Authority shall write to the concerned office to transfer the title and register the land in his name, and upon receiving such written order, the said office shall transfer the title and register the land and inform the Local Authority thereof. 35. Acquired Land may be Sold: If the former landowner does not wish to take back the land to be returned under Section 34, or if he cannot be found, the land may be sold to someone else. 36.

Property to be Returned if Not Removed within Specified Period: If crops planted on any land, trees, or houses, walls, etc., built on it are to be removed and taken away under various sections of this Act, and if such property is not removed within the specified period, the Local Authority may take such property into its possession, and no claim of the concerned owner shall lie over such property. 37. Compensation or Damages to be Received within Specified Period: If the interested person does not come to receive the compensation or damages amount or does not agree to receive it within the period specified for receiving compensation or damages under various sections of this Act, the Local Authority shall publish a notice giving a final period of three months to receive such compensation or damages amount. If the interested person does not come to receive it within that period as well, such person shall not be entitled to such compensation or damages, and the amount of such compensation or damages shall be credited to the Consolidated Fund.

38. Local Authority to Provide Assistance: Any officer authorized to perform any act under this Act may, in the course of performing his duties, seek the assistance of the Deleted by Administration of Justice Act, 2048. Chief District Officer or police, and upon such request, the Deleted by Administration of Justice Act, 2048. Chief District Officer and police shall provide assistance. Added by Some Nepal Acts Amendment Act, 2075 to Make Conformable with the Constitution of Nepal.38A. Government of Nepal to Retain Ownership: Notwithstanding anything elsewhere contained in this Act, where land is acquired for a Provincial Government or a Local Level by decision of the Government of Nepal, the ownership of such land shall remain with the Government of Nepal. 39.

Penalties: (1) If any person obstructs or prevents any proceedings under Section 6, or creates a mob or riot against persons going to conduct such proceedings, or assaults them, or damages any equipment installed or erected in connection with such proceedings, or erases or destroys any marks or maps made, he shall be liable to a fine of up to one thousand rupees, or imprisonment for up to one month, or both. (2) If any person obstructs or prevents the pasting of a notice under Section 9, or creates a mob or riot, he shall be liable to a fine of up to one thousand rupees. (3) If any person obstructs, prevents, or creates a mob or riot while the Local Authority takes possession of land under sub-section (1) of Section 12 or sub-section (3) of Section 25, he shall be liable to a fine of up to one thousand rupees, or imprisonment for up to one month, or both. 40. Authorities to Hear and Hear Appeals: (1) The Chief District Officer shall have the authority to conduct initial proceedings and adjudicate cases relating to offenses punishable under this Act. (2) An appeal against the decision of the Chief District Officer under sub-section (1) shall lie to the Amended by Some Nepal Acts Amendment Act, 2072.District Court within thirty-five days. 41. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 42. Power to Make Rules: The Government of Nepal may make rules to carry out the objectives of this Act. 43. Repeal and Saving: (1) The Land Acquisition Act, 2018, is hereby repealed. (2) Any work or proceeding relating to acquisition of land under the Land Acquisition Act, 2018, pending at the time of commencement of this Act, may be continued as if it had been done or conducted under this Act after its commencement.